



Appeal Decision

Hearing held on 26 August 2026

Site visit made on 26 August 2026

by N Bromley BA (Hons) DipTP MRTPI

an Inspector appointed by the Secretary of State

Decision date: 23 September 2026

Appeal Ref: 6010155

The Crown Inn, 97 Station Road, Cradley Heath B64 6NT

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Sham Singh against the decision of Sandwell Metropolitan Borough Council.
 - The application Ref is DC/25/70389.
 - The development proposed is demolition of existing public house and proposed retail unit with parking, landscaping and associated works.
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Decision

1. The appeal is allowed and planning permission is granted for the proposed demolition of existing public house and proposed retail unit with parking, landscaping and associated works at The Crown Inn, 97 Station Road, Cradley Heath B64 6NT in accordance with the terms of the application, Ref DC/25/70389, subject to the conditions in the attached schedule.

Applications for costs

2. An application for costs was made by Sham Singh against the decision of Sandwell Metropolitan Borough Council and is the subject of a separate decision.

Preliminary Matters

3. In the banner heading above and my formal decision, I have used the description of development taken from the Council's decision notice, as opposed to the application form, as it more accurately and succinctly describes that for which permission is sought. The revised description was agreed with the main parties at the Hearing, and I have therefore determined the appeal on that basis.
4. A new version of the National Planning Policy Framework (the Framework) came into force on the 17 August 2026. The main parties were able to address matters arising from this, both in writing prior to the Hearing, and orally at the Hearing itself. I have had regard to those comments and the relevant policies of the Framework in making my decision.

Main Issue

5. Although refused for two reasons, during the course of the appeal the Council confirmed that following the submission of additional information they are satisfied that the second reason for refusal, relating to the sequential test and retail impact, has been suitably addressed. Accordingly, the main issue in this appeal is the

principle of the proposed development, including the loss of the existing public house, having regard to the development plan and any other considerations.

Reasons

6. The appeal site comprises the former Crown Inn public house (the public house), located within a busy urban environment, along Station Road. The site is adjacent to the Broadcote Industrial Estate, with land and buildings to either side in commercial / industrial use. Houses are located along Station Road, and the wider surrounding area has a mixed character, comprising employment uses and residential dwellings.

Current Development Plan

7. The site is allocated for housing development in the Sandwell Metropolitan Borough Council Site Allocations and Delivery Development Plan Document (the SADDP) 2012, and Policy SAD H1 states that the land is suitable for residential redevelopment and can accommodate 10 dwellings or more. Policy SAD H1 of the SADDP also recognises that other ancillary uses appropriate for residential areas, such as health facilities, community facilities and local shops, may also be acceptable where there is a gap in service provision and where they can be integrated successfully into the residential environment. Other uses will not be acceptable on these sites.
8. As a local convenience store, the proposal would offer services and a large selection of convenience goods to the neighbourhood nearby, predominantly within walking distance of the site.
9. There are existing shops located close to the appeal site. In particular, a Lonsdale and Lifestyle Express, a short walk away towards Old Hill, and a Heron Foods much further away in the other direction. No other convenience stores or shops offering similar goods and services to the proposal have been identified within proximity of the appeal site.
10. Although the Lonsdale and Lifestyle Express provide some service provision for the local community, not all of the nearby residential areas are within walking distance of those shops. In addition, as Heron Foods is a notable distance away from the appeal site, I am not persuaded that it is within a convenient location for the nearby population. In these circumstances, and on the evidence before me, there is a gap in service provision.

The emerging Local Plan

11. With commercial / industrial buildings and land to either side and to the rear, housing development has not been delivered on the land, and the Council accept that residential development would be difficult to deliver. Indeed, in the emerging Sandwell Local Plan 2024-2041 (the eSLP) the appeal site forms part of a wider allocation for Local Employment use, covered by Policy SEC3 of the eSLP – Local Employment Areas.
12. I am told that the eSLP is at an advanced stage following consultation on main modifications. Whilst the final Inspectors' report has yet to be received, it is not disputed that there are no outstanding objections to Policy SEC3 of the eSLP. Therefore, having regard to Policy DM4 of the Framework, I afford it considerable weight.

13. Point 2) of Policy SEC3 of the eSLP states that Local Employment Areas will provide for the needs of locally based investment and will be safeguarded for, amongst other things, industry and warehousing, haulage and transfer depots, trade, wholesale retailing and builders' merchants. However, point 3) of Policy SEC3 of the eSLP identifies that some ancillary employment-generating non-Class E(g)(ii), E(g)(iii) and B uses, may be permitted where they can be shown to strongly support, maintain or enhance the business and employment function of the area, and where they meet sequential and other national or local policy tests. The policy's supporting text at paragraph 8.35 of the eSLP indicates that such uses may include small-scale food and drink provision or childcare facilities. They should be of a scale, nature, and location to serve the needs of an employment area where existing facilities are inadequate or where such needs cannot be met in adjacent centres.
14. A local convenience store would not fall within a use that Local Employment Areas would ordinarily be safeguarded for, but it would nonetheless be an ancillary employment-generating use. Indeed, although the exact number of jobs that would be generated by the proposal is not confirmed, it would nevertheless employ a notable number of staff. Thus, generating new jobs locally.
15. The scale and nature of the proposed store would improve the quality of goods on offer in this area, and I have already found that there is a gap in service provision locally and the proposal would satisfy the sequential test and retail impact.
16. Although the proposed shop on the site would prevent other uses on the land, particularly those specified in point 2) of Policy SEC3 of the eSLP, with existing employment uses adjacent and locally, the convenience goods on offer would generate custom from the businesses nearby. Thus, the proposal would serve the needs of the employment area, as well as local residents nearby.
17. In combination, the above factors would ensure that the proposed development would help to strongly support, maintain and / or enhance the business and employment function of this area.
18. The Council suggest that the proposal would prevent the wider redevelopment of the area. However, the appeal site is not large and due to its juxtaposition with the road and neighbouring businesses, there is no substantiated evidence which demonstrates that the proposal would stifle the future redevelopment of the wider employment area should a scheme come forward. In any event, Policy SEC3 of the eSLP allows ancillary employment-generating non- Class E(g)(ii), E(g)(iii) and B uses alongside uses that Local Employment Areas would ordinarily be safeguarded for and there is no reason to suggest that a convenience store cannot successfully integrate into an employment area.

The loss of the public house

19. The public house has been intermittently closed for the last 12 months and has not been open since January due to various challenges, particularly price increases and a lack of customers. Albeit there is some suggestion that when it was open it was busy.
20. The loss of the public house was not cited as a concern within the reason for refusal and there are no policies within the SADDP that prevent the loss of public houses. However, Policy HC6 of the Framework, sets out that development

proposals should not result in the loss of key community facilities and public service infrastructure, which includes public houses, unless a set of limited circumstances apply. Including, that it can be demonstrated that there is no reasonable prospect of the use being retained, and that evidence is provided that reasonable steps have been taken to market the property for its existing use without success for a period of at least 12 months, or there is sufficient alternative provision such that its loss will not diminish access to key community facilities and public service infrastructure. Similarly, Policies SDS6 and SDM8 of the eSLP seek to retain community facilities, subject to a number of criteria being met.

21. The main parties agreed at the Hearing that as Policy SDM8 of the eSLP references public houses it is more relevant than Policy SDS6 which relates to community facilities more generally. Indeed, Policy SDM8 of the eSLP, seeks to prevent the loss of a public house, unless there is an alternative venue that can meet similar needs within walking distance. Therefore, Policy SDM8 of the eSLP is broadly consistent with Policy HC6 of the Framework.
22. The residential area surrounding the appeal site is well served by other public houses which include the Waterfall, the Spring Meadow and the Haden Cross. They are each within walking distance of the local community nearby. There are also a plentiful number of other public houses within the wider area as well. In these circumstances, and despite concerns from a small number of interested parties about the loss of public houses locally, the loss of The Crown Inn would not diminish access to key community facilities and public service infrastructure. As such, the loss of the public house would not conflict with Policy HC6 of the Framework, and Policy SDM8 of the eSLP.

Findings

23. I have found that the proposed shop would be appropriate for the area as there is a gap in service provision locally. Therefore, it would be in accordance with Policy SAD H1 of the SADDP. I also afford Policies SEC3 and SDM8 of the eSLP considerable weight, which, for the reasons given, the proposal would not conflict with. There would also be no conflict with Policy HC6 of the Framework.
24. Within settlements, such as the appeal site, Policy S4 of the Framework states that development proposals should be approved unless the benefits of doing so would be substantially outweighed by any adverse effects, when assessed against the national decision-making policies in the Framework. No such adverse effects have been identified.
25. As there would be no conflict with the development plan, the Framework, or the policies of the eSLP, I conclude that the principle of the proposed development, including the loss of the existing public house, having regard to the development plan and any other considerations, is acceptable.

Conditions

26. I have considered the suggested conditions, taking into account the discussions at the Hearing, the policies in the Framework and the advice given in the Planning Practice Guidance. Where necessary I have made amendments to the suggested conditions for the sake of clarity and precision.

27. In addition to the standard time limit condition, it is necessary to impose a condition that requires the development to be carried out in accordance with the approved plans for certainty.
28. Conditions which restrict the amount of dedicated retail floorspace of the building and its use class to Class E(a) are necessary to safeguard the vitality and viability of existing nearby local centres. However, I have not included the suggested condition which would prevent the amalgamation or sub-division of the unit, or the installation of mezzanine floors, unless otherwise agreed in writing by the local planning authority, as I am not persuaded that it is necessary to make the development acceptable.
29. To ensure that the appearance of the development is satisfactory, conditions are imposed to require samples / details of the external materials and any means of enclosure to be approved prior to above ground construction works. Likewise, and for the same reason, a condition to secure the prior approval of a soft landscaping scheme is necessary.
30. In the interests of highway safety, a condition would be necessary to secure the proposed parking and turning arrangements, prior to the occupation of the building. A condition to secure the prior approval of cycle parking storage is also necessary to promote sustainable transport use for staff and customers.
31. A condition to secure the submission and approval of waste storage arrangements is necessary to ensure appropriate and convenient measures are in place for waste disposal and collection. The prior approval of external lighting is necessary to ensure that light pollution from the development does not harm the amenity of the area, including neighbouring residential properties. Similarly, in order to protect neighbouring amenity levels, conditions for the prior approval of noise levels for fixed plant associated with the proposed development, as well as the submission and approval of a construction management plan are appropriate.
32. Conditions which control the hours of demolition and construction works, opening times and delivery times for the retail store are reasonable and necessary in the context of the development proposed, and the proximity to adjacent houses.
33. Ground contamination investigations, along with any associated remedial works conditions are necessary to prevent risk to the environment and to protect the public. A condition to secure appropriate means for the disposal of foul and surface water drainage, is necessary to provide adequate drainage measures in the interests of flood prevention and to protect the environment also.
34. Conditions 3-5 relate to pre-commencement activities. In each case I am satisfied that the conditions are necessary to make the development acceptable in planning terms and that it would have otherwise been necessary to refuse planning permission. The appellant has provided written agreement to those conditions.

Conclusion

35. For the reasons given, subject to conditions, and having regard to all other matters raised, the appeal is allowed.

N Bromley

INSPECTOR

APPEARANCES

FOR THE APPELLANT:

Alastair James Thornton MRTPI

Director, Simply Planning Limited

Jasdeep Sahota

On behalf of the appellant

FOR THE COUNCIL:

Andrew Dean MRTPI

Senior Planning Officer

Bart Shirm MRTPI

Senior Planning Policy Officer

Carl Mercer MRTPI

Principal Planning Officer

Schedule of Conditions

- 1) The development hereby permitted shall begin not later than three years from the date of this decision.
- 2) The development hereby permitted shall be carried out in accordance with the following approved plans, numbered:
 - (11) 002 Location Plan Revision P1
 - (11) 001 Proposed Site Plan Revision P1
 - (30) 001 Proposed Ground Floor Plan Revision D2
 - (41) 001 Proposed Elevations Revision D2
- 3) No development hereby permitted shall take place until a detailed surface water drainage and foul sewage scheme for the site has been submitted to and approved in writing by the local planning authority. The development shall be carried out in accordance with the approved details.
- 4) Prior to the commencement of the development hereby permitted a Construction Environmental Management Plan (the CEMP) shall be submitted to and approved in writing by the local planning authority. The CEMP shall include the following details:
 - a) The parking of vehicles of site operatives and visitors;
 - b) Loading and unloading of plant and materials;
 - c) Storage of plant and materials used in constructing the development;
 - d) The erection and maintenance of security hoarding;
 - e) Wheel wash facilities including means of dealing with water runoff; and
 - f) Measures to control the emission of dust and dirt during demolition and construction.

The development shall be carried out in accordance with the approved CEMP and shall be adhered to throughout the construction period.

- 5) No development hereby permitted shall take place until an assessment of the risks posed by any contamination, carried out in accordance with British Standard BS 10175: Investigation of potentially contaminated sites - Code of Practice and the Environment Agency, Land Contamination Risk Management (LCRM) (or equivalent British Standard and Model Procedures if replaced), has been submitted to and approved in writing by the local planning authority. If any contamination is found, no development shall take place until: i. a report specifying the measures to be taken, including the timescale, to remediate the site to render it suitable for the development hereby permitted has been submitted to and approved in writing by the local planning authority; ii. the site has been remediated in accordance with the approved measures and timescale; and iii. a verification report has been submitted to and approved in writing by the local planning authority. If, during the course of development, any contamination is found which has not been previously identified, work shall be suspended until: i. additional measures for the remediation of the site have been carried out in accordance with details that shall first have been submitted to and approved in writing by the local planning authority; and ii. a verification report for all the

remediation works has been submitted to and approved in writing by the local planning authority.

- 6) No development above ground level shall take place until details of the materials to be used for the external surfaces of the development hereby permitted have been submitted to and approved in writing by the local planning authority. The development shall be constructed in accordance with the approved materials.
- 7) No development above ground level shall take place until a scheme showing details of the height, type and position of all means of enclosure to be erected on the site have been submitted to and approved in writing by the local planning authority. The approved means of enclosure shall be erected before the development is first occupied or brought into use.
- 8) Before the development hereby permitted is brought into use a detailed hard and soft landscaping and planting scheme shall be submitted to and approved in writing by the local planning authority. The approved hard and soft landscaping and planting scheme shall be implemented within eight months of the development being occupied. Any tree, hedge or shrub planted as part of the soft landscaping scheme (or replacement tree/hedge) on the site which dies or is lost through any cause during a period of 5 years from the date of first planting shall be replaced in the next planting season.
- 9) Before the development hereby permitted is first brought into use details of secure cycle parking provision within the site shall be submitted to and approved in writing by the local planning authority. The approved secure cycle parking shall be implemented before the development is first occupied or brought into use and thereafter retained as approved.
- 10) Before the development hereby permitted is first brought into use details of waste storage arrangements for the development hereby permitted shall be submitted to and approved in writing by the local planning authority. The approved waste storage arrangements shall be implemented before the development is first occupied or brought into use and thereafter retained as approved.
- 11) Before the development hereby permitted is occupied or first brought into use an external lighting scheme shall be submitted to and approved in writing by the local planning authority. The approved lighting scheme shall be implemented before the development is first occupied or brought into use and shall thereafter be retained as approved.
- 12) The development hereby permitted shall not be occupied or brought into use until the space shown on, drawing number - (11) 001 Proposed Site Plan Revision P1, for the parking and manoeuvring of vehicles has been provided. When provided the space for the parking and manoeuvring of vehicles shall thereafter be retained as approved.
- 13) Prior to the installation of any fixed plant associated with the proposed development full noise details, including calculated noise levels at the nearest affected dwellings, shall be submitted to and approved in writing by the local

planning authority. The development shall be carried out and thereafter retained in accordance with the approved details.

- 14) Construction and demolition works and the delivery of materials on site shall occur only between the hours of 07:30 and 18:00 Monday to Friday; 08:30 to 14:30 on Saturdays and no work on Sundays or bank holidays.
- 15) The retail unit shall only operate between the hours of 06:00 and 23:00 Monday to Sunday. Deliveries shall only take place between the hours of 07:00 and 22:00 Monday to Saturday and 08:00 to 22:00 hours on Sunday.
- 16) The maximum total net retail sales area of the development hereby permitted shall not exceed 232m².
- 17) Notwithstanding the provisions of The Town and Country Planning (Use Classes) Order 1987 (as amended) and The Town and Country Planning (General Permitted Development) (England) Order 2015 (as amended), (or any Order revoking and re-enacting those Orders with or without modification), the approved use shall be used solely for Class E(a) use only and for no other purposes.

*****END OF SCHEDULE*****